

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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NALAYA SMITH,

Plaintiff,

-against-

SUMMONSPOLICE OFFICER NICHOLAS ALBERGO, Shield No.
17802, SERGEANT ANDREW DORSETT, POLICE
OFFICER COLIN KOGAN, Shield No. 21160, and
POLICE OFFICERS JOHN DOES #s 1- 4 (names and
numbers of whom are unknown at present),

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Kings
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your Answer to the Complaint, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 3, 2019

Yours, etc.

/s/JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690TO: POLICE OFFICER NICHOLAS ALBERGO, Shield No. 17802, HB Brooklyn Impact
Response Team
SERGEANT ANDREW DORSETT, HB Brooklyn Impact Response Team
POLICE OFFICER COLIN KOGAN, Shield No. 21160, HB Brooklyn Impact Response
Team

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
NALAYA SMITH,

Plaintiff,

INDEX NO.:**VERIFIED COMPLAINT**

-against-

POLICE OFFICER NICHOLAS ALBERGO, Shield No.
17802, SERGEANT ANDREW DORSETT, POLICE
OFFICER COLIN KOGAN, Shield No. 21160, and
POLICE OFFICERS JOHN DOES #s 1- 4 (names and
numbers of whom are unknown at present),**JURY TRIAL DEMANDED**Defendants.
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Plaintiff Nalaya Smith, by her attorneys, Jacobs & Hazan, LLP, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 25, 2018 at 7:45 pm plaintiff was lawfully parked inside of her vehicle in the vicinity of Gates Avenue and Stuyvesant Avenue, Brooklyn, New York, when defendants unlawfully stopped, questioned, frisked, searched, falsely arrested/ imprisoned, maliciously prosecuted plaintiff, and denied plaintiff the right to due process and right to a fair trial. Plaintiff was unlawfully detained by the defendants for approximately 5 hours before the officers issued her a desk appearance ticket and released her from custody. Defendants initiated a criminal prosecution against plaintiff based upon defendants' fabricated version of events and plaintiff was maliciously charged with Criminal Possession of Marijuana (PL 221.05). Plaintiff was required to make two court appearances and on March 1, 2018 all criminal charges brought against her were dismissed and sealed in their entirety. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely arrested/ imprisoned, maliciously prosecuted, and denied plaintiff the right to due process/right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Nalaya Smith is a resident of the state of New York.

3. Defendant Police Officer Nicholas Albergo, Shield No. 17802, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant Police Officer Nicholas Albergo, Shield No. 17802, is and was at all times relevant herein, assigned to the HB Brooklyn Impact Response Team.

5. Defendant Police Officer Police Officer Nicholas Albergo, Shield No. 17802 is being sued in his individual and official capacity.

6. Defendant Sergeant Andrew Dorsett is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant Sergeant Andrew Dorsett is and was at all times relevant herein, assigned to the HB Brooklyn Impact Response Team.

8. Defendant Sergeant Andrew Dorsett is being sued in his individual and official capacity.

9. Defendant Police Officer Colin Kogan, Shield No. 21160, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant Police Officer Colin Kogan, Shield No. 21160, is and was at all times relevant herein, assigned to the HB Brooklyn Impact Response Team.

11. Defendant Police Officer Colin Kogan, Shield No. 21160, is being sued in his individual and official capacity.

12. Defendants Police Officers John Does #s 1-4 are and were at all times relevant times herein officers, employees, and agents of the New York City Police Department.

13. Defendants Police Officers John Does #s 1-4 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at

all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On January 25, 2018 at 7:45 pm, plaintiff Nalaya Smith lawfully drove her motor vehicle from her home to her friend's home to pick up money that he owed to her.

19. Plaintiff legally parked her vehicle in the vicinity of her friend's apartment building, in the vicinity of Gates Avenue and Stuyvesant Avenue, Brooklyn, New York when she observed defendants walking toward her friend's apartment building.

20. Thereafter, plaintiff observed her friend exit his apartment building, walk to plaintiff's vehicle, and lawfully get into plaintiff's vehicle.

21. As soon as plaintiff's friend got into her vehicle, the defendant officers walked back to their vehicle, which was parked immediately in front of plaintiff's vehicle, and got back into their vehicle.

22. Plaintiff then lawfully drove away to find a better parking spot.

23. Plaintiff lawfully parked her vehicle in a legal parking spot nearby, turned the car off, and was proceeding to get out of the car when the defendant officers who were previously parked in front of her pulled their vehicle behind plaintiff's vehicle, exited their vehicle and approached plaintiff's vehicle.

24. Defendants asked plaintiff for her license and registration and she handed it to them.

25. At no time prior to stopping plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed a crime, was about to commit a crime, or was in the process of committing a crime.

26. At no time relevant herein did plaintiff commit a crime, nor did the defendant police officers have an objective factual basis to believe she committed a crime.

27. At no time relevant herein was plaintiff in possession of any illegal drugs, weapons, or contraband of any kind, nor did the defendant police officers have an objective reason to believe plaintiff possessed any illegal drugs, weapons, or contraband of any kind.

28. Nevertheless, the defendants ordered plaintiff to exit her vehicle and they unlawfully frisked and searched plaintiff, without reasonable suspicion, probable cause or any legal justification.

29. Defendants did not recover any illegal substances, weapons or contraband pursuant to the unlawful frisk and search of plaintiff.

30. The defendants also unlawfully searched plaintiff's vehicle, without probable cause or legal justification, and did not recover any illegal weapons, drugs, or contraband pursuant to their search.

31. At no time relevant herein did the defendants have an objective factual basis to believe plaintiff committed a crime and they lacked probable cause to arrest plaintiff.

32. Nevertheless, the defendants unlawfully handcuffed plaintiff, falsely arrested and imprisoned her and transported her to the PSA 3 Precinct against her will

33. The defendants fabricated allegations against plaintiff in order to justify arresting her and falsely claimed that they recovered a marijuana cigarette from a glove that was in the possession of plaintiff's friend.

34. The Defendants unlawfully searched, fingerprinted, photographed and unlawfully detained in a filthy holding cell at the PSA 3 Precinct.

35. The defendants maliciously charged plaintiff without probable cause with possession of the marijuana cigarette the defendants falsely allegedly they recovered from plaintiff's friend.

36. At approximately 2:00 am on January 26, 2018 the defendant officers issued plaintiff a Desk Appearance ticket and released plaintiff from custody at the police precinct.

37. The defendant officers provided the Kings County District Attorney's Office with false, misleading and incomplete information about the facts and evidence that purportedly gave them probable cause to arrest and prosecute plaintiff.

38. Based upon the false information provided to the District Attorney's Office by the defendant police officers, a criminal prosecution was maliciously initiated against plaintiff without probable cause and defendants charged plaintiff with Criminal Possession of Marijuana (PL 221.05).

39. Plaintiff was arraigned in Kings County Criminal Court on March 1, 2018 and charged with crimes she did not commit and for which the officers lacked probable cause to accuse her of committing.

40. Plaintiff was required to appear in Kings County Criminal Court on two occasions.

41. On March 1, 2018 the criminal prosecution terminated in plaintiff's favor when the Court dismissed and sealed all criminal charges brought against plaintiff in their entirety.

42. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, and denial of a fair trial and are liable to plaintiff for their failure to intervene.

43. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, and denial of due process/ right to a fair trial, against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

44. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The individually named police officer defendants while acting in concert and within the scope of their authority, caused the unlawful search of plaintiff's vehicle and caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, falsely arrested/ imprisoned, maliciously prosecuted, falsely without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

46. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

47. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

49. The conduct of defendants in stopping, frisking, and searching, plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

50. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

53. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

55. Defendants lacked probable cause to search plaintiff.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment

59. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

64. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

66. Defendants commenced and continued a criminal proceeding against plaintiff.

67. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

68. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

69. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights **Denial of Right to Due Process/ Fair Trial**

72. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 71 with the same force and effect as if fully set forth herein.

73. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

74. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

75. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

76. In withholding/creating false evidence against plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

77. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of her constitutional rights.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

80. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. The defendants that did not physically touch plaintiff but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

82. Defendants failed to intervene to prevent the unlawful conduct described herein.

83. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

84. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

87. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

88. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Nalaya Smith demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 3, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 3, 2019

_____/s/
DAVID M. HAZAN